FILED
SUPREME COURT
STATE OF WASHINGTON
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BY ERIN L. LENNON
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*Treated as motion for reconsideration. See 12-27-21 letter.
Supreme Court Clerk's Office

No. 100049-9
Court of Appeals No. 81948-8-I

IN THE SUPREME COURT FOR
THE STATE OF WASHINGTON

GREGORY M. and R. SUE TADYCH, a married couple,

Petitioners,

v.

NOBLE RIDGE CONSTRUCTION, INC., a Washington corporation; and WESCO INSURANCE COMPANY, a foreign surety, Bond No. 46WB025486,

Respondents.

NOBLE RIDGE CONSTRUCTION, INC., a Washington corporation,

Third-party Plaintiff,

v.

LOBERG ROOFING.COM, INC., a Washington corporation; HORACIO CASTELLANOS d/b/a MASTER STUCCO, a Washington sole proprietorship; MODERN SIDING, LLC, a Washington limited liability company; UNITED SUBCONTRACTORS, INC. d/b/a BURNHAM INSULATION & DRYWALL SYSTEMS, INC., a Washington corporation; MODERN METALS, LLC, a Wyoming limited liability company; TIMBERLINE NORTHWEST, LLC, a Washington limited liability company,

Third-party Defendants.

OBJECTION TO ASSIGNMENT JUSTICE'S RULING

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A. Identity of objecting party & relief requested.

Respondent Noble Ridge asks this Court to reconsider its ruling giving Petitioners Tadych (a) more time to file their Supplemental Brief, and (b) a chance to *reply* to Noble Ridge's Supplemental Brief. This ruling both prejudices Noble Ridge and advantages the Tadyches.

B. Facts relevant to objection.

This Court granted review on November 3, making the Supplemental Briefs due December 3. RAP 13.4(d). The Tadyches asked for more time to file their Supplemental Brief, until December 27. This Court granted both parties until December 17 to simultaneously file their Supplemental Briefs. Noble Ridge complied.

The Tadyches violated this Court's rules by filing an overlength supplemental brief the day it was due. This Court rewarded their violation with more time to make their brief stronger, also effectively granting them a *reply* to Noble Ridge's already filed Supplemental Brief.

C. Argument.

This ruling rewards Tadyches for their noncompliance with this Court rules by giving them more time to improve their brief that was not given to Noble Ridge. It also prejudices Noble Ridge for complying with the RAPs, giving the Tadyches a reply to its Supplemental Brief. Replies to supplemental briefs are not permitted.

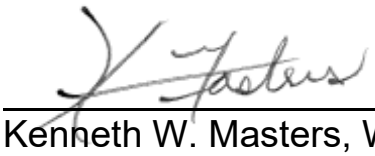
This Court should reconsider and either: (a) accept the overlength supplemental brief; or (b) grant Nobel Ridge a reply to be filed within 10 days after the Tadyches file their Amended Supplemental Brief. The latter ruling punishes Noble Ridge's counsel, who is on vacation, but he will get it done.

D. Conclusion

This Court should reconsider and either: (a) accept the overlength supplemental brief; or (b) grant Nobel Ridge a reply to be filed within 10 days after the Tadyches file their Amended Supplemental Brief.

RESPECTFULLY SUBMITTED this 21st day of December 2021.

MASTERS LAW GROUP, P.L.L.C.

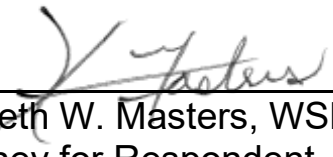


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CERTIFICATE OF COMPLIANCE

The undersigned certifies that pursuant to RAP 18.17, the foregoing **OBJECTION TO ASSIGNMENT JUSTICE'S RULING** was produced using word processing software and the number of words contained in the document, exclusive of words contained in any appendices, title sheet, table of contents, table of authorities, certificate of compliance, certificate of service, signature blocks, and pictorial images (*e.g.,* photographs, maps, diagrams, and exhibits) is 285.



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CERTIFICATE OF SERVICE

I certify that I caused to be filed and served a copy of the foregoing **OBJECTION TO ASSIGNMENT JUSTICE'S RULING** on the 21st day of December 2021 as follows:

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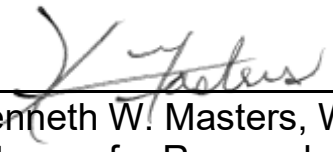
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December 21, 2021 - 8:31 AM

Transmittal Information

Filed with Court:	Supreme Court
Appellate Court Case Number:	100,049-9
Appellate Court Case Title:	Gregory Tadych, et ano. v. Noble Ridge Construction, Inc., et al.

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